

SW No. _____

STATE OF CALIFORNIA - COUNTY OF SACRAMENTO
SEARCH WARRANT AND AFFIDAVIT
(AFFIDAVIT)

Special Agent John Doe, being sworn, says that on the basis of the information contained within this Search Warrant and Affidavit and the attached and incorporated **Statement of Probable Cause**, comprising a total of [insert number] pages, he has probable cause to believe and does believe that the property described below is lawfully seizable pursuant to Penal Code Section 1524, as indicated below, and is now located at the location set forth below. Wherefore, affiant requests that this Search Warrant be issued.

Night Search Requested YES [] NO [X] (**justification on page(s) { }**)

(Signature of Affiant - after having been sworn)

Reviewed by _____
(Deputy District Attorney)

(SEARCH WARRANT)

**THE PEOPLE OF THE STATE OF CALIFORNIA TO ANY SHERIFF, POLICEMAN OR
PEACE OFFICER IN THE COUNTY OF SACRAMENTO:**

proof by affidavit having been made before me by Special Agent John Doe, that there is probable cause to believe that the property described herein may be found at the locations set forth herein and that it is lawfully seizable pursuant to Penal Code Section 1524 as indicated below by “x” (s) in that it:

_____ was stolen or embezzled
_____ was used as the means of committing a felony
_____ is possessed by a person with the intent to use it as means of committing a public offense or is possessed by another to whom he or she may have delivered it for the purpose of concealing it or preventing its discovery.
___X___ tends to show that a felony has been committed or that a particular person has committed a felony.

YOU ARE THEREFORE COMMANDED TO SEARCH:

The following locations:

- 1) The residence of Richard Roe, located at 1234 Main Street, Sacramento, CA, and described as a single family residence, with gray-and-white clapboard-style siding, gray trim, composition roof, and the numbers 1234 appearing on the exterior wall to the immediate right of the attached garage. The numbers 1234 are also painted in white relief on the curb in front of the residence.
- 2) All vehicles under the immediate control of Richard Roe at the time of service of this search warrant.
- 3) The person of Richard Roe, described as an adult male, 5'9", 150 lbs., with blonde hair and blue eyes, CDL C0000000.

For the following items:

- 1) Computer equipment and software that may be used to store, modify, or transmit the computer virus W32.KlezH@mm, as defined by Norton Anti-Virus definitions, and/or E-mail sent to Jane Smith, or others, pertaining the storage, modification and/or transmission of computer viruses.
- 2) Notes, documents or indicia relative to the deliberate propagation of the computer virus W32.KlezH@mm, as defined by Norton Anti-Virus definitions and/or E-mail sent to Jane Smith or others pertaining the storage, modification or transmission of computer viruses.
- 3) Indicia indicating ownership or control of properties seized and/or searched.

The terms "records," "information," and "property" includes all of the foregoing items of evidence in whatever form and by whatever means that may have been created or stored, including records, whether stored on paper, on magnetic media such as tape, cassette, disk, diskette or on memory storage devices such as optical disks, programmable instruments such as telephones, "electronic address books," calculators, or any other storage media, or any other form of "writing" as defined by Evidence Code section 250, together with indicia of use, ownership, possession, or control of such "records," "information," and "property."

Investigating officers are authorized, at their discretion, to seize all "computer systems," "computer program or software," and "supporting documentation" as defined by Penal Code section 502, subdivision (b), including any supporting hardware, software, or documentation that is necessary to the use of the system or is necessary to recover digital evidence from the system and any associated peripherals that are believed to contain some or all of the evidence described in the warrant, and to conduct an off-site search of the seized items for the evidence described. Investigating officers and those agents acting under the direction of the investigating officers are authorized to access all computer data to determine if the data contains "property," "records," and "information" as described above. If necessary, investigating officers are authorized to

employ the use of outside experts, acting under the direction of the investigating officers, to access and preserve computer data. Any digital evidence found during the execution of this search warrant will be seized, transported from the scene, and analyzed within 120 days from the date of seizure to determine if the seized computer systems and associated peripherals contain some or all of the evidence described in the warrant. Should additional time be required, the affiant shall show cause why more time is required and apply to the court for an extension. If no evidence of criminal activity is discovered relating to the seized computer systems and associated peripherals, the system will be returned promptly.

AND TO SEIZE IT IF FOUND and bring it forthwith before me, or this court, at the courthouse of this court. This Search Warrant and incorporated Affidavit was sworn to and subscribed before me this _____ **day of** _____, **2002**, at _____ **A.M. / P.M.** Wherefore, I find probable cause for the issuance of this Search Warrant and do issue it.

(Signature of Magistrate)

Night Search Approved YES [_____] NO [_____]
(Magistrate's initials)

Judge of the **Superior Court** [] **Municipal Court**-Sacramento Judicial District [].

Executed by_____

Date_____ **Hr.**_____

Affidavit in Support of Search Warrant
County of Sacramento

Your affiant, Special Agent John Doe, is employed as a full-time, sworn law enforcement officer for the [agency name] and has been for the past [#] years. During your affiant's tenure, your affiant has investigated numerous cases involving financial crimes, thefts, computer and communications-related crimes, robbery, organized crime, homicide and narcotics. Your affiant has developed and taught required Peace Officer Standards and Training (POST) courses for technological investigations. Your affiant has also qualified as an expert witness, on multiple occasions, in several areas of electronic technology and communication. Additionally, your affiant has received advanced training in electronic crimes from the Federal Bureau of Investigation, Quantico, VA, the National Technical Investigators Association, Washington D.C., High Technology Crime Investigation Association and other industry seminars.

Your affiant is currently assigned to the Sacramento Valley Hi-Tech Crimes Task Force, which operates under the auspice of the Sacramento County Sheriff's Department, and is tasked with the investigation of crimes as they relate to the illegal use, abuse or theft of electronic service, technology and equipment.

On 8-8-02, your affiant contacted a complainant, Jane Smith. Smith claimed that former friend, Richard Roe, had attempted to send a computer virus in retaliation for Smith filing a lawsuit against Roe. Smith told your affiant lawsuit papers had been served on Roe around 7-26-02. Smith claimed on 7-28-02 she received E-mail with Roe identified as the sender, entitled, "Let's be friends." The E-mail was devoid of text content but had two attachments, an executable file and a jpg image file. Smith said she scanned the E-mail with her Norton virus detection software, which detected the virus W32.KlezH@mm. Smith provided further information she believes Roe now obtains Internet service through SBC Global (PacBell), with DSL equipment.

On 8-8-02, Smith forwarded both the suspect E-Mail and corresponding message routing (header) information. The material forwarded by Smith corroborated previously provided information. The attached executable file was infected with the W32KlezH@mm virus and embedded header information indicated the message had originated through the Pacific Bell Internet DSL system. The header also showed the message as sent by "rRoe@sbcglobal.net" (inserted by the originating computer E-mail software) with an associated originating Internet Protocol (IP) Address of 66.122.19.80.

Your affiant knows that individuals illegally access computer systems through the Internet and install virus programs to either illegally control systems, destroy data or obtain data. Sometimes these same viruses may be sent unwittingly by individuals due to the self-propagating nature of some viruses. This is particularly true with viruses that obtain valid E-mail addresses loaded in infected computers, sending a subject line of gibberish, and the virus, to the addresses, eventually destroying data in the host computer.

Your affiant believes that the facts in this case indicate the attempt to infect Smith's computer was a deliberate act based upon the timing of events between Smith and Roe and the subject line of the E-mail, "Let's be friends," as opposed to gibberish. Your affiant is further aware that a person conducting an illegal act of this nature will have used special software to purposely infect the E-mail and that this software will reside on a computer or electro-magnetic or optical storage media, for access. Storage media for software may reside within a residence, business, vehicle or on a person. Your affiant knows that sometimes tracing the originating IP Address to the E-mail sender's Internet service provider will offer subscriber information and possibly assist in identifying the persons responsible for the sending of a virus.

Through experience and training, your affiant knows companies offering E-mail services, such as Pacific Bell Internet Services, maintain records related to account registration, connection time and dates, Internet routing information (Internet Protocol numbers), and message content, which may assist in the identification of person/s accessing and utilizing the account.

On 8-14-02, your affiant spoke with Smith and learned that two additional virus infected E-mail messages had been received, one on 8-13-02 and the other on 8-14-02. Smith also stated she believed Roe had been served with a restraining order on 8-12-02 which she had obtained (this has not been corroborated to date). Both messages contained header information associated with Roe but had different sender names and E-mail accounts (parameters easily spoofed). The messages were forwarded to your affiant, who inspected the header content. Both messages also contained viruses.

On 8-21-02, your affiant received search warrant information from Pacific Bell Internet Services for the three aforementioned headers, as well as information stating that Richard Roe, 1234 Main Street., Sacramento, CA, is a customer of the company. During review of the provided information, your affiant realized that incorrect month of occurrence was given in the warrant for two of the three E-mail headers. The E-mail header supplied with the correct date of occurrence, 7-28-02, listed the account of Richard Roe as the sender. Information on the other two E-mail points of origination is now being sought through the warrant process. Your affiant also verified the address of Roe through California Department of Motor Vehicle records.

Your affiant is aware that digital evidence can be stored on a variety of systems and storage devices including, but not limited to, Electronic data processing and storage devices, computers and computer systems including central processing units: internal and peripheral storage devices such as fixed disks, external hard disks, floppy disk drives and diskettes, tape drive and tapes, optical storage devices or other memory storage devices: peripheral input/output devices such as keyboards, printers, video display monitors, optical readers, and related communications devices such as modems. These items are easily transportable and may be found in a residence, vehicle or on a person.

Your affiant, in connection with his employment, uses computer systems as well as conducting computer-related investigations. In the past six years, your affiant has supervised or participated

in excess of one hundred executions of search warrants for computer-stored records and evidence. Your affiant knows that conducting a search of a computer system, documenting the search, and making evidentiary and discovery copies is a lengthy process. It is necessary to determine that no security devices are in place, which could cause the destruction of evidence during the search; in some cases it is impossible even to conduct the search without expert technical assistance. Since computer evidence is extremely vulnerable to tampering or to destruction through error, electrical outages, and other causes, removal of the system from the premises will assist in retrieving the records authorized to be seized, while avoiding accidental destruction or deliberate alteration of the records. It would be extremely difficult to secure the system on the premises during the entire period of the search.

Your affiant also knows that whether records are stored on floppy disks or on a hard drive, even when they purportedly have been erased or deleted, they may still be retrievable. Your affiant is familiar with the methods of restoring "lost" data commonly employed by computer users, and has used those methods himself. Your affiant has also obtained the assistance of a computer expert in several cases, in order to obtain the contents of computer-stored evidence where normal methods were unsuccessful. Your affiant states that should such data retrieval be necessary, it is time-consuming, and would add to the difficulty of securing the system on the premises during the search.

Your affiant knows that the accompanying software must also be seized, since it would be impossible without examination to determine that it is standard, commercially available software: it is necessary to have the software used to create data files and records in order to read the files and records. In addition, without examination, it is impossible to determine that the diskette purporting to contain a standard commercially available software program has not been used to store records instead.

Your affiant knows that the system documentation, instruction manuals, and software manuals are also necessary to properly operate that specific system in order to accurately obtain and copy the records authorized to be seized.

Your affiant knows the system's passwords or keys must also be seized, since it may be impossible to access the system if it is password-protected or other encryption devices are in place. Your affiant also knows that users often record passwords or keys on material found near the computer system. These pass words or keys could be names or a combination of characters or symbols.

Your affiant is aware that conducting a search of a computer system, documenting the search, and making evidentiary and discovery copies for a standard computer can take over 3 business days. Complex systems or recover tasks can require an excess of 45 business days to complete. Due to the back load of computers awaiting to be examined and the limited number of trained examiners, the Sacramento Valley Hi-Tech Crimes Task Force is currently conducting searches of computer system within 120 days of receipt. Your affiant states that the Sacramento Valley Hi-

Tech Crimes Task Force would process any computer system seized pursuant to this warrant within 120 days of receipt.

It is respectfully requested that your affiant be allowed to seize all original digital evidence, in whatever form it currently resides, and transport this original digital evidence to a secure Evidence Storage Facility for a proper forensic examination.

Your affiant also knows that sending a destructive computer virus is a felony under California state law (Pen. Code sec. 664/502 (c)(4)) and that the nexus of the crime can be at any point of origination or termination within the state of California.

Based on the aforementioned information, your affiant believes sufficient probable cause exists for the issuance of a search warrant for:

The following location:

- 1) A residence: located at 1234 Main Street, Sacramento, CA, described as a single family residence, with gray-and-white clapboard-style siding, gray trim, composition roof, and the numbers 1234 appearing on the exterior wall to the immediate right of the attached garage. The numbers 1234 are also painted in white relief on the curb in front of the residence.
- 2) All vehicles under the immediate control of Richard Roe at the time of service of this search warrant.
- 3) The person of Richard Roe: described as an adult male, 5'9", 150 lbs., with blonde hair and blue eyes, CDL C0000000.

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Your affiant swears the aforementioned information is the truthful and accurate, to the best of his knowledge.

Special Agent John Doe, Affiant